



IN THE HIGH COURT OF JUDICATURE OF BOMBAY
BENCH AT AURANGABAD

61 WRIT PETITION NO. 2998 OF 2026

Laxman Namdev Nagare

....Petitioner

VERSUS

The Director Directorate of Industries & othersRespondents

Mr. N. V. Sharma, Advocate for the Petitioner (through VC)

Mr. V. M. Kagne, AGP for the State.

CORAM : SMT VIBHA KANKANWADI

& AJIT B. KADETHANKAR, JJ.

DATE : 20th APRIL, 2026.

PER COURT :

1. Heard learned Advocate for the Petitioner.
2. Petitioner seeks direction against Respondent No. 1 to consider and decide afresh on merits and in accordance with the law, representation dated 25.09.2025, after granting Petitioner an opportunity of hearing.
3. The Petitioner has come with a case that he is an agriculturist, in occupation and ownership over the agricultural land Gat No. 787 situated at village Hanga, Tq. Parner, Dist. Ahilyanagar. The Petitioner has purchased the said land on 23.09.2005 to the extent of

6 H 64 R. According to the Petitioner, out of this land, retained 1 H 55 R land in his name and sold land to the extent of 5 H 11 R to private purchasers in the year 2006. According to the Petitioner, those purchasers had subsequently transferred the purchased portion to a private company as M/s. AAM India Gear & Axle Pvt. Ltd., which later on changed its name to K Drive Mobility Solutions Pvt. Ltd. The industrial unit was set up. While granting permission, conditions were put on the said company. It was expressly permitted to the extent of land legally purchased by the company i.e. 5 H 11 R. Now, according to the Petitioner, the company has encroached upon the additional area admeasuring 1 H 55 R which was retained by the Petitioner. Respondent No. 1 has issued a communication dated 06.11.2025 mechanically treating application/representation dated 25.09.2025 by the Petitioner as application under Right to Information Act, and therefore, the present Petition has been filed.

4. Here it is to be noted that the Petitioner has not clearly stated as to what was the exact date of encroachment. When asked, learned Advocate for the Petitioner submits that the encroachment has been done in the year 2025 but it does not appear to be the factual aspect. In the representation/application also, there is no specific mention of

the date on which the alleged encroachment has been done or knowledge of the Petitioner as to since when the encroachment became known to the Petitioner. Certainly, when the alleged encroachment is on the land belonging to the Petitioner, then if he intends to recover possession, he will have to approach the Civil Court as the alternate efficacious remedy is available. Now, he cannot come before this Court under the guise that there is violation of permission terms. Secondly, except his submission that the company has encroached upon his land, there is nothing on record. He had not even taken pains to get the land measured when he makes allegation that encroachment is to the extent of 1 H 55 R. with these lacunae in the petition, this cannot be taken as a fit case where this Court can exercise powers under Article 226 of the Constitution of India. Hence, petition stands dismissed.

(AJIT B. KADETHANKAR)
JUDGE

(SMT. VIBHA KANKANWADI)
JUDGE

dyb